

		government-subsidized contract Cal Civ Code § 1954.535. It does not substitute for, nor does it excuse a landlord from, serving the mandatory three-day or other statutory notices for the basis of a just cause eviction required under CCP section 1161 if the tenant remains in possession after the transition period and the landlord seeks eviction. The 90 Day Notice attached to the Amended Complaint does not meet the legal notice requirements for a just cause termination pursuant to Civil Code § 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. The Court SUSTAINS the Demurrer. As Plaintiff alleges in its moving papers that it has served the requisite notices to comply with the requirements under California Code of Civil Procedure § 1161, the Court will allow the Plaintiff leave to amend the Complaint to include such notices which comport with the legal requirements under CCP §1161. The Court orders the Plaintiff to file the Amended Complaint within 5 business days. The Court Clerk is to provide notice of the Court's ruling.
11	30-2026-01575211 Main Street Management, Inc vs. Rios	The Court has read and considered the Defendant's Motion to Quash Service of Summons (ROA 48). The Court takes Judicial Notice of the 8/28/2026 Minute Order, Motion to Dismiss (ROA 19), Proof of Service of 10-day Summons & Complaint-Personal (ROA 11), and Notice of Ruling (ROA 47). On August 28, 2026 this Court made the following findings and orders: "The Court has read and considered the Defendant's Motion to Dismiss (ROA 19). A Motion to Dismiss is an improper responsive pleading after service of a complaint in an unlawful detainer action. Pursuant to California Code of Civil Procedure § 1170(a), the Defendant needs to file a motion to quash service of summons, a motion to strike, a demurrer to the complaint, or an answer. The Defendant did not allege defective service of summons in the Motion to Dismiss and failed to file a Motion to Quash service within the statutory period. The Defendant filed this Motion on June 17, 2026 and chose to calendar it for August 28, 2026, more than 2 months after filing it and well outside the statutory time period for unlawful detainers. Furthermore, Defendant does not allege that the Complaint is not facially sufficient for an unlawful detainer complaint. Defendant's sole contention for the basis to dismiss the complaint is that Defendant has experienced economic hardship and would like to remain in the property. The Court DENIES the Motion to Dismiss. As such, the Court orders the Defendant to file an Answer within 3 calendar days. Plaintiff is ordered to provide notice of the Court's ruling." California Evidence Code Section 647 establishes a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. The Defendant failed to provide evidence to rebut the presumption established under Evidence Code section 647. Here, registered process server John Cuevas (San Bernardino #1580) personally served Javier Rios with a description on 6/6/2026 at 9:39 AM.

		Defendant provides no support for his contention that he was not properly served. The Defendant's self-serving statements alone do not rebut the presumption under Evidence Code section 647. Furthermore, the Court finds that Defendant failed to follow the Court's previous order by filing a Motion to Quash Service instead of an Answer. Defendant never raised the issue of service in his motion to dismiss and was ordered to file only an Answer. The Court orders the Defendant to file an Answer ONLY within two calendar days. If the Defendant fails to follow the Court's orders, the Court may sanction the Defendant by striking the response and entering a default, or by imposing monetary sanctions. The Court Clerk is to provide notice of the Court's ruling.